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IN THE HIGH COURT OF JUDICATURE AT MADRAS

Reserved on: 8/10/2026

Pronounced on : 9/10/2026

CORAM

THE HON'BLE MR.JUSTICE K. SURENDER

WP Nos. 36623, 28148, 29331 and 33709 of 2026

CNR:{HCMA012152762026}

Case QR

WMP Nos.41042, 41043 30812, 30815, 30817, 32225, 32227, 32229 and 37117 of 2026

1. B.Shanmathi
   D/o.V.Baskar,
   No.4, 7th cross, Jaya nagar west,
   Reddiyarpalayam, puducherry - 605010.
2. A.Jana
   S/o.K.Azhagesan,
   No.16, first cross street, pattammal nagar,
   mudaliarpet, puducherry - 605004.

..Petitioner(s)

Vs

1. The Secretary to Government
   (Higher and Technical Education)
   Education Department, Chief Secretariat,
   Gubert Avenue, Puducherry – 605001.

2. The Director
   Directorate of Higher and Technical Education,
   Lawspet, Puducherry - 605008.

3. The Director
   Directorate of Sports and Youth Affairs,
   Kamarajar Centenary Complex, Nellithope,
   Anna Nagar, Puducherry – 605005.

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4. The Convenor (CENTAC)
   Kamarajarmanimandapam, Near Sivaji Statute,
   Karuvadikuppam, Puducherry - 605008.

5. The Co-Ordinator (Admission)
   (CENTAC)
   Kamarajar Manimandapam, Near Sivaji Statute,
   Karuvadikuppam, Puducherry - 605008.

6. Vishnu Prasath.S
   Sl.No.114, selected for MBBS under MSP
   Indira Gandhi Medical College
   and Research Institute
   Vazhuthavur Road, Kathirkamam,
   Puducherry - 605009.

7. Sarathi.T
   Sl.No.102, selected for MBBS under MSP,
   Pondicherry Institute of Medical Sciences,
   Kalapet, Puducherry - 605014.

8. A.Rithika
   Sl.NO.89, Selected for MBBS under MSP
   Sri Manakula Vinayagar Medical College
   and Hospital, Kalitheerthalkuppam,
   Madagadipet, Puducherry - 605107.

..Respondent(s)

Case QR

WP No. 28148 of 2026

CNR:{HCMA011639812026}

1. Puducherry Amateur Pencak Silat Association
   (Regn. 74/2018)
   (Affiliated to Indian Pencak Silat Federation)
   By its Secretary MR.S.Pachayappan,
   No.9, East Side, Kuruvinatham,
   Puducherry – 607402.

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2. Sreeharini.K
   D/o.Karounakaran,
   No.2A, Vennangulathu Street, Govindhanpet,
   Mutharaiyarpalayam, Puducherry - 605009.

3. Minor S.Semmathi
   Rep. by Father and Natural Guardian
   P.Senthilvel,
   No.121, 1st Street, 2nd Cross,
   Angalamman Nagar, Murungapakkam,
   Puducherry - 605004.

4. Minor Anugraha
   Rep. by Father and Natural Guardian
   Mr.R.P.Anbu
   No.37, Gangaiamman Koil Street,
   Thattanchavady, Puducherry -605009.

..Petitioner(s)

Vs

1. The Government of Puducherry
   By its Chief Secretary,
   Chief Secretariat, Goubert Avenue,
   Puducherry – 605001.

2. The Government of Puducherry
   By its Development Commissioner-cum-
   Secretary to Government,
   (Education and Sports), Chief Secretariat,
   Goubert Avenue, Puducherry - 605001.

3. The Government of Puducherry
   By its Undersecretary to Government,
   (Higher and Technical Education),
   Chief Secretariat, Goubert Avenue,
   Puducherry – 605001.

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4. The Government of Puducherry
   By its Director,
   Department of School Education,
   (Sports and Youth Services), A Block,
   I Floor, Perunthalaivar Kamaraj Centenary
   Educational complex,
   100 Feet Road, Anna Nagar,
   Nellithope, Puducherry – 605005.

5. Centralised Admission Committee (CENTAC)
   Kamarajar Manimandapam, Near Sivaji Statue,
   Karuvadikuppam, Puducherry - 605008.

..Respondent(s)

WP No. 29331 of 2026

Case QR

CNR:{HCMA011703182026}

1. B.Shanmathi
   D/o.V.Baskar,
   No.4, 7th cross, Jaya Nagar West,
   Reddiyar Palayam, Puducherry - 605010.
2. A.Jana
   S/o.K.Azhagesan,
   No.16, First Cross Street, Pattammal Nagar,
   Mudaliarpet, Puducherry - 605004.

..Petitioner(s)

Vs

1. The Secretary To Government
   (Higher And Technical Education)
   Education Department, Chief Secretariat,
   Gubert Avenue, Puducherry – 605001.

2. The Director
   Directorate of Higher and Technical Education,
   Lawspet, Puducherry - 605008.

3. The Director
   Directorate of Sports and Youth Affairs,
   Kamarajar Centenary Complex,
   Nellithope, Anna Nagar, Puducherry - 605005.

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4. The Convenor (CENTAC)
   Kamarajar Manimandapam,
   Near Sivaji Statute, Karuvadikuppam,
   Puducherry – 605008.

5. The Co-Ordinator (Admission)
   (CENTAC),
   Kamarajar Manimandapam, Near Sivaji Statute,
   karuvadikuppam, puducherry - 605008.

..Respondent(s)

WP No. 33709 of 2026

Case QR

CNR:{HCMA011956682026}

1. B.Shanmathi
   D/o. V.Baskar,
   No.4, 7th Cross,
   Jaya Nagar West,
   Reddiyar Palayam,
   Puducherry - 605 010.

2. A.Jana,
   S/o. K.Azhagesan,
   No.16, First Cross Street,
   Pattammal Nagar,
   Mudaliarpet,
   Puducherry - 605 004

..Petitioner(s)

Vs

1. The Secretary to Government (Higher and
   Technical Education),
   Education Department, Chief Secretariat,
   Gubert Avenue, Puducherry - 605 001

2. The Director
   Directorate of Higher and Technical Education
   Lawspet, Puducherry - 605 008

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3. The Director,
   Directorate of Sports and Youth Affairs
   Kamarajar Centenary Complex,
   Nellithope,
   Anna Nagar,
   Puducherry- 605 005

4. The Convenor (CENTAC)
   Kamarajar Manimandapam,
   Near Sivaji Statute,
   Karuvadikuppam,
   Puducherry 605 008

5. The Co-ordinator (Admission),
   (CENTAC),
   Kamarajar Manimandapam,
   Near Sivaji Statute,
   Karuvadikuppam,
   Puducherry - 605 008

..Respondent(s)

W.P.No.36623 of 2026

Prayer: Petition filed under Article 226 of the Constitution of India praying for the issuance of a writ of certiorari to call for records pertaining to the Provisional Allotment list Ref.No.CENTAC/UG-NEET/2026/13 dated 03.09.2026 issued by the fourth respondent and quash the same insofar as the petitioners have been omitted there from and consequently direct the fourth respondent to include the names of the petitioners in the provisional Allotment List dated 03.09.2026 in accordance with their entitlement under the applicable MSP quota and the marks/merit secured by them.

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WP No. 28148 of 2026

Prayer: Petition filed under Article 226 of the Constitution of India praying for the issuance of a writ of certiorarified mandamus to call for the records of the 3rd respondent in G.O.16 dated 14.07.2026 and to quash the same as illegal,arbitrary and in so far as it seeks to exclude the sport/game of Pencak Silat from the list of games considered for admission to educational institution under sports quota and consequently direct the respondents to include the game/sport of Pencak Silat in the list of games under sports quota for counselling by CENTAC for admission to educational institutions this year.

WP No. 29331 of 2026

Prayer: Petition filed under Article 226 of the Constitution of India praying for the issuance of a writ of certiorarified mandamus calling for the concerned records relating to the G.O.Ms.No.16 dated 14.07.2026 issued by the 1st respondent and followed by the corrigendum Ref.No.CENTAC/UG-NN/2026/08 dated 15.7.26 issued by the 1st respondent in sofar as it orders for deletion of Atya patya from the list of approved games and consequently direct the respondents to consider the petitioners under MSP quota by the respondents 4 and 5 for the purpose of medical admission on the basis of the certificates possessed by them.

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WP No. 33709 of 2026

Prayer: Petition filed under Article 226 of the Constitution of India praying for the issuance of a writ of mandamus to forbear the respondents from filling up MSP Quota in respect of Non NEET and NEET for the year 2026-2027 on the basis of the G.O.Ms.No.16 dated 14.07.2026.

For Petitioner(s): Mr.L.Chandrakumar
for Mr.M.Gnanasekar
in W.P.Nos.36623, 29331 and 33709 of 2026

Mr.Vikram Veerasamy
for TVJ Associates
in W.P.No.28148 of 2026

For Respondent(s): Mr.AR.L.Sundaresan
Additional Solicitor General of India
assisted by Ms.V.Usha
Additional Government Pleader
(Puducherry)
in W.P.Nos.36623, 29331 and 33709 of 2026

Mr.AR.L.Sundaresan
Additional Solicitor General of India
assisted by Mr.Ramaswamy Meyyappan
Government Advocate
(Puducherry)
in W.P.No.28148 of 2026

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COMMON ORDER

Writ Petition No.36623 of 2026 has been filed to quash the order dated 3/9/2026 passed by the fourth respondent in Provisional Allotment list Ref.No.CENTAC/UG-NEET/2026/13 and consequently, direct the fourth respondent to include the names of the petitioners in the provisional Allotment List dated 03.09.2026 in accordance with their entitlement under the applicable MSP quota and the marks/merit secured by them.

2. **Writ Petition No.28148 of 2026** has been filed to quash the G.O.Ms.No.16 dated 14/7/2026 issued by the third respondent to exclude the sport/game of Pencak Silat from the list of games considered for admission to educational institution under sports quota and consequently direct the respondents to include the game/sport of Pencak Silat in the list of games under sports quota for counselling by CENTAC for admission to educational institutions this year.

3. W**rit Petition No.29331 of 2026** has been filed to quash G.O.Ms.No.16 dated 14/7/2026 issued by the first respondent and followed by the corrigendum Ref.No.CENTAC/UG-NN/2026/08 dated 15.7.26 issued by the 1st respondent in sofar as it orders for deletion of Atya Patya from the list of approved games and consequently, direct the respondents to consider the

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petitioners under MSP quota by the respondents 4 and 5 for the purpose of medical admission on the basis of the certificates possessed by them.

4. Writ Petition No.33709 of 2026 has been filed to forbear the respondents from filling up MSP Quota in respect of Non NEET and NEET for the year 2026-2027 on the basis of the G.O.Ms.No.16 dated 14.07.2026.

5. Briefly, the main grievance of the petitioners in all these writ petitions concerns their applications for admission to different courses in colleges within the Union Territory of Puducherry. The Centralised Admission Committee (CENTAC) administers these admissions. All the petitioners claim seats under the Meritorious Sports Person (MSP) quota, under which a specified percentage of seats is reserved for admission to NEET and non-NEET courses.

6. The Government of Puducherry/CENTAC issued notices on 17/4/2026 and 14/5/2026 for admission to NEET and non-NEET courses. The last date for filing applications was the end of May, 2026.

7. On 14/7/2026, after the deadline of applications, the Government of Puducherry issued G.O.Ms.No.16, Chief Secretariat (Higher & Technical Education), whereby the number of sports disciplines previously recognised for

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eligibility under the MSP quota was reduced from 65 to 35 by deleting 30 disciplines.

8. The petitioners are sportspersons who participated in sports disciplines included among the 30 disciplines deleted from consideration under the MSP quota.

9. The principal submission of the learned counsel appearing for the petitioners is that, on the date of their applications, all 65 sports disciplines were recognised as eligible for the sports quota. However, without notice to those affected, the Government decided to delete 30 sports disciplines and retain only 35, which caused prejudice to the petitioners.

10. It is contended that the notification adversely affects students who applied under the MSP quota. According to the petitioners, any such change can be implemented only from the next academic year and cannot be applied to the current admission process, as its application to that process would violate Article 14 of the Constitution of India.

11. The learned counsel appearing for the petitioners relied upon the judgment of the Hon'ble Supreme Court in ***Col. A.S. Sangwan v. Union of India and Others, 1980 Supp SCC 559,*** and submitted that Article 14 of the

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Constitution of India requires any change in policy to be made fairly, without giving the impression that the authorities are acting arbitrarily or on the basis of ulterior considerations.

12. On the other hand, the learned Additional Solicitor General appearing on behalf of CENTAC submitted that Annexure 15 to the NEET based courses brochure for 2026–2027, specifically identifies 35 sports disciplines as eligible for the sports quota. Since the petitioners participated in sports disciplines not included in Annexure 15, their claim for consideration under the MSP quota cannot be entertained. It was further submitted that the Government had taken a policy decision and that interference under Article 226 of the Constitution of India was unwarranted in the absence of arbitrariness or an ulterior motive.

13. The learned Additional Solicitor General also relied upon the judgment of the Hon'ble Supreme Court in ***State of Tamil Nadu and Another v. P. Krishnamurthy and Others, (2006) 4 SCC 517,*** in support of the submission that the State Government is empowered to make or amend rules within the scope of its authority and that legislation carries a presumption of constitutionality or validity.

14. The learned counsel appearing for the petitioners sought to demonstrate why the deleted sports disciplines ought to have been retained,

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pointing out that they are recognised in other selection processes, including recruitment by the State Government. That contention does not, by itself, warrant substituting this Court's assessment for the policy decision. It is not the petitioners' case that the G.O. was issued with an ulterior motive to benefit particular named candidates or to deny consideration to particular named candidates. The decision was taken by a panel after considering various factors.

15. The absence of an allegation of mala fides does not, by itself, exclude judicial review. A policy decision must nevertheless satisfy Article 14. The Court's scrutiny concerns the legality and fairness of the decision and its implementation; it does not extend to selecting the sports disciplines that the Court considers preferable. The power to revise the policy and the question whether the revision can govern an admission process already commenced require separate consideration.

16. In fact, Annexure 15 to the NEET based courses brochure specifies only 35 sports disciplines as eligible for the sports quota. Nothing has been placed on record to show that the brochure produced by the respondents was issued after G.O.Ms.No.16. The petitioners have not produced any brochure for admission to NEET-based courses recognising 65 sports disciplines as eligible for the sports quota.

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17. In these circumstances, the material placed before this Court does not establish that the eligibility conditions published for the NEET admission process were altered after applications were invited. The claim concerning NEET admissions must therefore be distinguished from the claim concerning non-NEET admissions, for which Annexure 14 to the brochure identifies 65 sports disciplines.

18. The judgment relied on by the counsel appearing for the petitioners in Col.A.S.Sangwan's case, differs on facts since the Hon'ble Supreme Court was dealing with a situation where specific Officers were denied opportunity of posting. In the said circumstances, the Hon'ble Supreme Court had made such observations. The said observations in the present facts of the case cannot be applied.

19. The petitioners in W.P.Nos.36623, 33709 and 29331 of 2026 approached this Court after the seats had been filled during counselling. By order dated 10/9/2026, this Court passed the following direction:

> *"5. Since there is only one seat under the MSP quota and the same has already been filled up, this Court directs to reserve one additional seat under MSP quota in Government College or otherwise, in private College under Government quota, if any seats*

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available under General category, as the petitioners mark would be higher than the mark obtained by the original allottee, in the event if the subject sport is included in the list for MSP quota as previous academic years."

20. The candidates already selected under the MSP quota have not been impleaded as parties to these writ petitions. Any order affecting their selection or admission would operate to their prejudice without affording them an opportunity of being heard. Consequently, no adverse order can be passed against those candidates in these proceedings, and their selections and admissions shall remain undisturbed. 20. In the peculiar circumstances of this case, although the seat originally available under the MSP quota had already been filled, this Court considered it appropriate, by the aforesaid interim order, to direct the reservation of one additional seat. The learned Additional Solicitor General submitted that, pursuant to the orders of this Court, one additional seat has been kept vacant and will be filled in accordance with the directions of this Court.

21. Admissions already made cannot be unsettled. The petitioners' eligibility for consideration against the seat reserved pursuant to the interim order can be examined by CENTAC. This Court finds no reason to quash

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G.O.Ms.No.16, Chief Secretariat (Higher & Technical Education), Government of Puducherry, dated 14/7/2026.

22. The fact that the petitioners approached this Court after the original allotments had been made limits the relief that can now be granted, particularly when the selected candidates are not parties to these proceedings. Nevertheless, the additional seat kept vacant pursuant to the interim order permits consideration of the petitioners' claims without displacing any admitted candidate. The limited relief is therefore confined to that vacant seat in the peculiar circumstances of this case; it does not reopen completed counselling or confer a general right to seek admission after the prescribed schedule.

23. Insofar as NEET courses are concerned, the brochure already specified that only 35 sports disciplines would be eligible, and that position is upheld. Insofar as non-NEET courses are concerned, for the current academic year and the ongoing admission process, all 65 sports disciplines mentioned in Annexure 14 to the brochure shall be considered.

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24. The limited direction concerning non-NEET admissions preserves the eligibility conditions published for the ongoing process. It does not invalidate the Government's revised classification of sports disciplines for future admission processes. A candidate's entitlement to consideration under the published conditions is distinct from an entitlement to admission, which remains subject to comparative merit and the applicable admission requirements.

25. The distinction rests on the eligibility conditions published for the respective admission processes. For non-NEET admissions, exclusion of disciplines included in Annexure 14 during the ongoing process would withdraw the basis on which the affected candidates sought consideration. Fairness under Article 14 requires that the limited consideration directed in this case proceed on those published conditions. This does not prevent the Government from prescribing the revised list for future admission processes after duly notifying it.

26. The additional seat kept vacant pursuant to the interim order shall be filled by CENTAC in accordance with the foregoing directions. Accordingly, the petitioners eligible under those directions may compete for that additional seat,

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and their marks based on the sports disciplines in which they participated shall be considered.

27. Consideration against the reserved seat shall be undertaken in accordance with the applicable eligibility requirements and comparative merit. This direction does not confer an automatic right to admission upon any petitioner and shall not disturb admissions already completed.

28. The reference to one additional seat is to be read in the context of the interim direction, which contemplated reservation against an available vacant seat. It shall not be construed as a direction to increase the sanctioned intake of any institution. CENTAC shall implement the direction within the applicable admission schedule and subject to the governing statutory and regulatory requirements.

29. Accordingly, these **writ petitions are disposed of** in terms of the foregoing directions. The challenge seeking to quash G.O.Ms.No.16 is rejected, subject to the limited direction concerning its application to the ongoing non-

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NEET admission process. No costs. Consequently, the connected miscellaneous petitions are closed.

(K.SURENDER,J)
9/10/2026

Neutral Citation: Yes/No

mvs.

To

1. The Secretary to Government (Higher and technical education)
   Education Department, chief secretariat, gubert avenue,
   Puducherry - 605001.
2. The Director
   Directorate of Higher and Technical education, lawspet,
   puducherry - 605008.

3. The Director
   Directorate of sports and youth affairs, kamarajar centenary complex,
   nellithope, anna nagar, puducherry - 605005.

4. The convenor (CENTAC)
   kamarajarmanimandapam, near sivaji statute, karuvadikuppam,
   puducherry - 605008.

5. The Co-Ordinator (Admission)
   (CENTAC)
   Kamarajar manimandapam, near sivaji statute, karuvadikuppam, puducherry - 605008.The Government of Puducherry
   By its Chief Secretary,
   Chief Secretariat, Goubert Avenue, puducherry – 605001.

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K.SURENDER ,J

mvs.

Pre-delivery common order in
WP Nos. 36623, 28148, 29331, 33709 of 2026

9/10/2026

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